



EMPLOYMENT AND CONFIDENTIALITY AGREEMENT

THIS AGREEMENT is entered into on 1/17/2023, between **RAVEN SOFTWARE SOLUTIONS INC, INC.**, a Florida corporation ("Company") **Kiran Kumar Gunturu** ("the Employee"), here by referred to as "Employee".

WITNESSETH:

WHEREAS, the Company wishes to engage our employee to assist with our client needs as more specifically listed in the Employee Handbook, and Employee is willing to do so, on all the terms and conditions hereinafter set forth;

WHEREAS, the probationary period for regular full-time and regular part-time employees lasts up to 90 days from date of hire. During this time, Employee has the opportunity to evaluate our Company as a place to work and management has its first opportunity to evaluate the Employee. During this introductory period, both the employee and the Company have the right to terminate employment without advance notice.

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth below, it is hereby covenanted and agreed by the Company and the Employee as follows:

1. Position; Employment Period

The Company hereby employs the Employee as **Senior Data Engineer**, and the Employee hereby agrees to serve in such capacity, or any such capacity as determined by Employer, ending on the date on which the Employee's employment is terminated in accordance with paragraph 8 below (the "Employment Period").

2. Performance of Duties

The Employee will devote his/her full time, attention, and energy to the business of the Company, and during her scheduled work hours of employment, will not engage in any other business activity, regardless of whether such activity is pursued for profit, gain, or any other pecuniary advantage and shall perform her duties faithfully and efficiently subject to the direction of the Owner or Managing Attorney of the Company. The Employee maybe assigned duties and responsibilities that are not generally within the scope and character associated or required of other employees of similar rank and position.

3. Compensation

Subject to the following provisions of this Agreement, during the Employment Period



the Employee will be compensated for his services as follows:

- (a) S/he will receive a salary of **\$101,110**/year subject to such review and revision from time to time as determined at the sole discretion of the Owner of the Company.

4. Disability

Subject to the provisions of paragraph 8, if the Employee's employment is terminated during the Employment Period by reason of his Disability (as defined below), the Employee shall continue to receive her pay in accordance with paragraphs 3 through the end of the first full calendar week of such disability but not in any event beyond the end of the Employment Period. For purposes of this Agreement the term "Disability" means a physical or mental disability which renders the Employee incapable of performing her/his duties under this Agreement with or without a reasonable accommodation. As determined by an independent physician selected by the Company and agreed to by the Employee.

5. Competing Businesses

During the period of his/her employment under this Agreement, the Employee shall not be employed by or otherwise engage in or be interested in any business in competition with the Company, or with any of its subsidiaries or affiliates, except that the Employee's investment in any such business shall not be considered a violation of this paragraph if such business is not in competition with the Company.

6. Confidentiality

The Employee acknowledges that during the engagement she will have access to and become acquainted with various clients and customers, processes, information, and records compiled, developed or utilized by the Company in connection with the operation of its business including, without limitation, the Company's business and product processes, methods, patient/client names and contact information, customer lists, vendor names and contact information, marketing efforts, client accounts and billing and collections procedures. The Employee agrees that s/he will not disclose any of the aforesaid, directly or indirectly, or use any of them in any manner, either during the term of this Agreement or at any time thereafter, except as required in the course of this engagement with the Company. All files, records, documents, blueprints, specifications, information, letters, notes, media lists, original artwork/creative, notebooks, and similar items relating to the business of the Company, whether prepared by the Employee or otherwise coming into her possession, shall remain the exclusive property of the Company. The Employee shall not retain any copies of the foregoing without the Company's prior written permission. Upon the expiration or earlier termination of this Agreement, or whenever requested by the Company, the Employee shall immediately deliver to the Company all such files, records, documents, specifications, information, and other items in her possession or under her control.



Right to Injunction: The parties hereto acknowledge that the services to be rendered by the Employee under this Agreement and the rights and privileges granted to the Company under the Agreement are of a special, unique, unusual, and extraordinary character which gives them a peculiar value, the loss of which cannot be reasonably or adequately compensated by damages in any action at law, and the breach by the Employee of any of the provisions of this Agreement will cause the Company irreparable injury and damage. The Employee expressly agrees that the Company shall be entitled to injunctive and other equitable relief in the event of, or to prevent, a breach of any provision of this Agreement by the Employee. Resort to such equitable relief, however, shall not be construed to be a waiver of any other rights or remedies that the Company may have for damages or otherwise. The various rights and remedies of the Company under this Agreement or otherwise shall be construed to be cumulative, and no one of them shall be exclusive of any other or of any right or remedy allowed by law.

7. Non-Solicitation of Clients and Employees; Case Files.

The Company has patients, clients, vendors from its consistent assisted living practice. Company is aggressively advertising its services to develop new patients and referral sources. For a period of two years after conclusion of his or her affiliation with the Company, the Employee shall not contact or solicit any potential or actual patients or referring sources of the Company to advise them of his or her availability to provide any services performed by the Company.

Non-Hire Provision: For a period of two years following the termination of employment for any reason, the Employee shall not, directly or indirectly hire, solicit, or encourage leaving the Company's employment, any employee or contractor of the Company, if any.

Cases and Files: Any and all patient/clients, case files, documents, and work product developed during this engagement relative to the duties under this Agreement shall be the exclusive property of the Company; and the Employee hereby assigns all right, title, and interest in the same to the Company. Employee will keep attorney up to speed on all files processed on behalf of the Company and will provide any and all documentation when requested.

8. Amendment and Termination

This Agreement may be amended or cancelled by mutual agreement of the parties without the consent of any other person and, so long as the Employee lives, no person, other than the parties hereto, shall have any rights under or interest in this Agreement or the subject matter hereof. The Employment Period shall terminate as of the earliest of:



(a) The last day of the month in which the date of the Employee's death occurs;

(b) The date on which the Company gives notice to the Employee if such termination is for Cause or Disability.

For purposes of this Agreement, "Cause" means the Employee's conduct, behavior or job-related performance that is deemed by the Company at its sole discretion as being unsatisfactory or otherwise not meeting the Company's reasonable expectations.

The Employee may also terminate this Agreement upon providing 30 days' advance written notice to the Company. Under such circumstances, the Company reserves the right to immediately terminate the Employee while paying the Employee for the notice period.

9. Assistance in Litigation.

The Employee will, upon reasonable notice, furnish such information and proper assistance to The Company as it may reasonably require in connection with any litigation or other matters in which it is, or may become, a party.

10. Effect of Prior Agreements

This Agreement supersedes any prior Agreement between the Company or any predecessor of The Company and the Employee, except that this Agreement shall not affect or operate to reduce any Benefit or compensation inuring to the Employee of a kind elsewhere provided and which is not Expressly provided in this Agreement.

11. Successors and Assigns

All of the provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, if any, successors, and assigns.

12. Arbitration

Any controversies or disputes arising out of the terms of this agreement or its interpretation shall be settled in Orlando, Florida by mediation. Each party shall bear its fees of the mediator whom it employs and the parties shall evenly divide the fees of the chairperson. If mediation does not settle, then Company may select litigation or Arbitration as an alternate.

13. Choice of Law

The laws of the State of Florida shall govern the validity of this Agreement, the construction of its terms and the interpretation of the rights and duties of the parties hereto.



14. Headings

Section headings are not to be considered a part of this Agreement and are not intended to be a full and accurate description of the contents hereof.

15. Waiver

Waiver by one party hereto of breach of any provision of this Agreement by the other shall not operate or be construed as a continuing waiver.

16. Non-Disclosure:

It is understood and agreed to that the below identified discloser of confidential information may provide certain information that is and must be kept confidential. To ensure the protection of such information, and to preserve any confidentiality necessary under patent and/or trade secret laws, it is agreed that

- a. The Confidential Information to be disclosed can be described as and includes:
Invention description(s), technical and business information relating to proprietary ideas and inventions, ideas, patentable ideas, trade secrets, drawings and/or illustrations, patent searches, existing and/or contemplated products and services, research and development, production, costs, profit and margin information, finances and financial projections, customers, clients, marketing, and current or future business plans and models, regardless of whether such information is designated as "Confidential Information" at the time of its disclosure.
- b. The Recipient agrees not to disclose the confidential information obtained from the discloser to anyone unless required to do so by law.
- c. This Agreement states the entire agreement between the parties concerning the disclosure of Confidential Information. Any addition or modification to this Agreement must be made in writing and signed by the parties.
- d. If any of the provisions of this Agreement are found to be unenforceable, the remainder shall be enforced as fully as possible and the unenforceable provision(s) shall be deemed modified to the limited extent required to permit enforcement of the Agreement as a whole.



17. Notices

Any and all notices, demands, or other communications required or desired to be given hereunder by any party shall be in writing and shall be validly given or made to another party if personally served, or if deposited in the United States mail, certified or registered, postage prepaid, return receipt requested. If such notice or demand is served personally, notice shall be deemed constructively made at the time of such personal service. If such notice, demand or other communication is given by mail, such notice shall be conclusively deemed given five days after deposit thereof in the United States mail addressed to the party to whom such notice, demand or other communication is to be given as follows:

If to the Employee:

If to the Company:

RAVEN SOFTWARE SOLUTIONS, INC
1503 Lyndon B Johnson FWY, Suite #250
Farmers Branch, Texas 75234

Any party hereto may change its address for purposes of this paragraph by written notice given in the manner provided above.

17. Modification or Amendment

No amendment, change or modification of this Agreement shall be valid unless in writing signed by the parties hereto.

18. Entire Understanding

This document and any exhibit attached constitute the entire understanding and agreement of the parties, and any and all prior agreements, understandings, and representations are hereby terminated and canceled in their entirety and are of no further force and effect.

19. Unenforceability of Provisions

If any provision of this Agreement, or any portion thereof, is held to be invalid and unenforceable, then the remainder of this Agreement shall nevertheless remain in full force and effect.



IN WITNESS WHEREOF, the Employee has hereunto set his hand, and the Company has caused these presents to be executed in its name and on its behalf, all as of the day and year first above written.

RAVEN SOFTWARE SOLUTIONS, INC

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Kiran Kumar Gunturu Offer

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Name: Kiran Kumar Gunturu Offer

DocuSigned by:

Aliza Singh

A88A35C085484BA...

Aliza Singh

By:

Title: HR Manager